



CHAPTER 27.

An Act to amend the provisions of the Agricultural Wages (Regulation) (Scotland) Act, 1937, relating to the power to direct reconsideration of minimum rates of wages, the constitution of the Scottish Agricultural Wages Board, and the appointment of chairmen of agricultural wages committees.

[13th June 1940.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—The Agricultural Wages (Regulation) (Scotland) Act, 1937 (hereinafter referred to as the principal Act) shall have effect as if for section six thereof (which section empowers the Secretary of State to direct a committee to reconsider minimum rates of wages) there were substituted the following section :—

Power of
Board to
direct recon-
sideration
of minimum
rates.

1 Edw. 8 &
1 Geo. 6.
c. 53.

“ 6.—(1) The Board, if they are of opinion that any minimum rate of wages should be varied, may direct the appropriate committee to reconsider such rate, and thereupon the committee shall within such time as the Board may direct reconsider the same and notify to the Board the result of their reconsideration.

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(*Regulation*) (*Scotland*) Act, 1940.

(2) In proceeding under the foregoing subsection, the Board shall have regard to the economic conditions of the industry.

(3) If on receipt of such notification as aforesaid the Board do not agree with the decision of the committee, they may themselves by order vary the minimum rate, and for that purpose shall have and may exercise all the powers of the committee :

Provided that—

(i) before exercising the power conferred by this subsection, the Board shall give the committee an opportunity of making representations and shall take any such representations into consideration; and

(ii) it shall not be necessary for the Board to give notice of the proposed variation of the rate except where in their opinion the variation is so material that notice thereof ought to be given ”.

Appointed
members of
Board.

2. The number of appointed members of the Board shall be increased from three to five.

Appoint-
ment of
chairman of
committee.

3. The power of appointing the chairman or the vice-chairman of a committee shall be transferred from the committee to the representative members thereof.

Consequen-
tial amend-
ments of
principal
Act.

4. The amendments specified in the second column of the Schedule to this Act, being amendments of a consequential nature, shall be made in the provisions of the principal Act mentioned in the first column of that Schedule.

Citation
and con-
struction.

5. This Act may be cited as the *Agricultural Wages (Regulation) (Scotland) Act, 1940*, and the principal Act and this Act shall be construed as one and may be cited together as the *Agricultural Wages (Regulation) (Scotland) Acts, 1937 and 1940*.

SCHEDULE.

Section 4.

CONSEQUENTIAL AMENDMENTS OF PRINCIPAL ACT.

- Section three - In subsection (2) there shall be inserted at the beginning the words "Subject to the provisions of section six of this Act".
- The Schedule - In paragraph 3, for the words "the committee" where first occurring, there shall be substituted the words "the representative members of the committee", and for the words "the committee" where second occurring there shall be substituted the words "such members"; and for the words "A committee" where second occurring there shall be substituted the words "The representative members of a committee".
- In paragraph 7, for the words "three members" there shall be substituted the words "five members".

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FOR

SIR WILLIAM RICHARD CODLING, C.B., C.V.O., C.B.E., the King's Printer of
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